



CHAPTER 77.

An Act to amend the law with regard to contributions by county councils to the Association of County Councils in Scotland and the payment of expenses incurred by members of county councils in attendance at meetings of that Association or of committees or sub-committees thereof: and to make provision with regard to the superannuation of the officers of that Association and of persons in their employment.

[6th November 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The expenses of the Association of County Councils in Scotland (hereinafter referred to as "the Association") in any year, shall, to an amount not exceeding the sum which would be produced by the levy of a rate of one-twelfth part of a penny in the pound on the rateable valuation in the year preceding that year of all the counties (inclusive of all the burghs situate therein) in Scotland, be defrayed by the county councils of those counties in accordance with the following provisions of this section.

Expenses of
County
Councils
Association.

(2) The aforesaid amount shall be allocated among the counties—

(a) as to one-third thereof, according to the respective rateable valuations in the said preceding year of the counties (inclusive of all the burghs situate therein); and

- (b) as to two-thirds thereof, according to the sums respectively arrived at by adding to the rateable valuations in the said preceding year of the small burghs situate in each county twice the rateable valuation in that year of the landward part of that county ;

and any sum so allocated to a county shall be paid by the county council of that county to the Association.

(3) The sum allocated to a county under paragraph (a) of the last foregoing subsection shall be deemed to be expenditure of the council for the purpose of their functions relating to education and shall be apportioned among the burghs situate in the county and the landward part thereof accordingly and the sum so allocated under paragraph (b) of the said subsection shall be apportioned among the small burghs situate in the county and the landward part thereof according to the rateable valuations in the said preceding year of each such burgh and a sum representing twice the rateable valuation in that year of the landward part.

(4) A sum apportioned to a burgh or to the landward part of a county under the last foregoing subsection, shall be deemed to have been apportioned and allocated to that burgh or landward part under section twenty-one of the Act of 1929 and the provisions of that section shall apply accordingly.

Expenses of
county
councillors
attending
meetings of
Association.

2.—(1) A county council may pay, in addition to any sum payable by them under the foregoing section, the expenses reasonably incurred in attendance at meetings of the Association or of any committee or sub-committee thereof by members of the council as representatives thereof, not exceeding in respect of any one meeting, six in number.

(2) The expenditure incurred by a county council in making payments under the last foregoing subsection shall be divided into two parts, the first bearing to the second the same proportion as the sum allocated to that county under paragraph (a) bears to the sum so allocated under paragraph (b) of subsection (2) of the foregoing section ; and subsections (3) and (4) of that section shall apply to the said two parts as if they had been allocated to that county under the said paragraphs (a) and (b) respectively.

Superannua-
tion of
employees of
County
Councils
Association.

1 Edw. 8 &
1 Geo. 6. c. 69.

3.—(1) If application for the purpose is made by the Association to an administering authority within the meaning of the Local Government Superannuation (Scotland) Act, 1937, section five of that Act shall have effect as if the Association were undertakers exercising powers within the area of the authority under an Act or statutory order.

(2) Where under the foregoing subsection an employee of the Association is admitted to participate in the benefits of the superannuation fund maintained by the authority, any service

rendered by him to the Association after attaining the age of eighteen years and before attaining the age of sixty-five years shall for the purposes of the said Act of 1937 be deemed to be service rendered to a local authority.

(3) For the purposes of this section, service rendered to an officer of the Association by a person employed by that officer and engaged wholly or mainly in the performance of duties relating to the functions of the Association, shall be deemed to be service rendered to the Association.

4. In this Act—

Interpretation.

the expression "the Act of 1929" means the Local Government (Scotland) Act, 1929; 19 & 20 Geo. 5. c. 25.

the expression "Association of County Councils in Scotland" means an Association consisting of representatives of county councils in Scotland and recognised by the Secretary of State as formed for the purpose of consultation as to their common interests and discussion of matters relating to their functions.

the expression "burgh" does not include a burgh being a county of a city;

the expressions "county" and "county council" mean, in the case of counties combined for the purposes mentioned in subsection (7) of section ten of the Act of 1929, the combined county and the joint county council;

the expressions "rateable valuation" and "small burgh" have the meanings respectively assigned to them by the Act of 1929.

5.—(1) This Act may be cited as the Association of County Councils (Scotland) Act, 1946. Citation, commence-ment and repeal.

(2) This Act shall have effect as from the sixteenth day of May nineteen hundred and forty-six.

(3) The County Councils Association (Scotland) Expenses Act, 1894, is hereby repealed. 57 & 58 Vict. c. 5.